

Nichenametla Vijaya Kumar, vs Smt. Aruna Kumari And Another, on 22 January, 2020

Author: C.Praveen Kumar

Bench: C.Praveen Kumar

THE HON'BLE SRI JUSTICE C.PRAVEEN KUMAR

Criminal Revision Case No. 1523 of 2007

ORDER:

- 1) The present Criminal Revision Case is filed under Sections 397 and 401 of Cr.P.C. assailing the Order, dated 26.09.2007, passed in Criminal Revision Petition No. 33 of 2007 as illegal.
- 2) As seen from the record, Respondent/ wife filed M.C. No. 13 of 2006 on the file of the Judicial Magistrate of First Class, Nandyal, claiming maintenance of Rs.3,000/- per month. The said M.C. was dismissed. Challenging the same, she filed Criminal Revision No. 32 of 2007 before the court of III Additional Sessions Judge, Kurnool at Nandyal, which was allowed setting aside the Order in M.C. No. 13 of 2006, dated 18.06.2007 and awarding maintenance @ Rs.500/- per month from the date of petition. Challenging the same, the present Criminal Revision Case came to be filed.
- 3) Ms. S. Anvesha, Advocate representing Sri. Karri Murali Krishna, Advocate for the Petitioner would contend that, there is enough material on ground to show that the Respondent/wife is not entitled for maintenance. It is said that, Respondent /wife is staying away on her own and there was no act on the part of the Petitioner which made her to stay away from him. In other words, her plea is that, there was no negligence on the part of the Petitioner and as such, awarding maintenance would not arise. She further pleads that the Respondent /wife is earning Rs.5,000/- per month and, therefore, she is not entitled for any relief.
- 4) In-spite of service of notice on the Respondent /wife, there is no representation on her behalf.
- 5) As seen from the record, the Respondent /wife herein filed M.C. No. 13 of 2006 and examined herself as PW1 and got marked Ex.P1 and Ex.P2. The Petitioner examined himself as RW1 and in support of his evidence, he also examined RW2. Apart from that, he got marked Ex.R1 -certified copy of Divorce Petition.
- 6) After considering the oral and documentary evidence on record, the Trial Court dismissed the M.C., which was set-aside in revision.
- 7) The question now is, whether the Petitioner is not entitled to pay maintenance and whether the Order under challenge requires interference?

8) As seen from the record, the marriage between the Petitioner and Respondent/wife was solemnized on 01.02.2004 as per Hindu rites and customs at Ammavartishala of Nandyal. Subsequently, she joined the Petitioner at Proddatur and both of them started living together. Subsequently, disputes arose between them, which lead to filing of O.P. No. 30 of 2006 for divorce. Unable to bear the harassment, a criminal case was also filed by the Respondent/wife against the Petitioner before the Judicial Magistrate of First Class. From the above facts, it is very clear that the Petitioner herein is the husband of the Respondent/wife and there is no dispute with regard to their relationship.

9) The next question would be, whether there was any negligence on the part of the Petitioner in maintaining his wife?

10) PW1 in her evidence stated that, though, she married the Petitioner and they lived happily for some time, later on the Petitioner demanded additional dowry of Rs., 4,00,000/-. When she expressed her inability to pay the amount, she was necked out from the house. On the other hand, the case of the Petitioner is that the Respondent/ wife willfully left the house on 14.04.2004 and did not return. RW2- the mediator who was examined on behalf of the Petitioner, in his evidence deposed that, in order to settle the disputes between the Petitioner and the Respondent/wife, he went to the house of the Respondent/wife and asked her to live happily. She refused to live with the Petitioner. The reason for living separately was that the Petitioner was harassing her and also demanding additional dowry. It may be a bald allegation with regard to the demand of additional dowry, but, the evidence of RW2 coupled with the evidence of PW1 amply establishes the reason for she living separately from her husband.

11) The last circumstance relied upon by the Petitioner that Respondent /wife is earning an amount of Rs.5,000/- per month and as such, she is not entitled for the relief. But, no evidence has been adduced in support of the same.

12) Having regard to the above, the Court feels that the finding of the Appellate Court and the Order impugned warrants no interference.

13) Accordingly, the Criminal Revision Case is Dismissed.

14) Consequently, miscellaneous petitions, if any, pending shall stand closed.

JUSTICE C.PRAVEEN KUMAR Date: 22.01.2020 SM.

THE HON'BLE SRI JUSTICE C.PRAVEEN KUMAR Criminal Revision Case No. 1523 of 2007 Date: 22.01.2020 SM.